

Diana Perez v. Spyglass Inn, LLC, et al., 25CV-0398

Hearing: Motion for Summary Judgment

Date: September 24, 2026

TENTATIVE RULING

Diana Perez filed this action for premises liability and negligence against Spyglass Inn, LLC (Spyglass) on June 17, 2025.¹ On January 13, 2026, Pacific Hotel Company was added as defendant Doe 1.²

Plaintiff alleges that she was injured on September 28, 2024, when she was walking through the parking lot of the Spyglass Inn located at 2705 Spyglass Drive in Pismo Beach, California, “when she tripped and fell on a change in elevation in the parking lot that was not apparent, conspicuous or highlighted causing her to trip and fall and suffer serious injury requiring medical and surgical attention.” (Cmpl., ¶ 9.)

Plaintiff alleges that Spyglass “had notice of the dangerous change in elevation for enough time to have protected against it because said dangerous condition was observable based on a reasonable inspection. Defendants knew the said condition would and could pose a tripping hazard to users of the parking lot who were unaware of the said condition. Defendants failed to supervise, failed to remedy, failed to guard against, failed to warn and failed to notify of said dangerous condition, which was a substantial factor in causing injury to Plaintiff.” (Cmpl., ¶ 10.)

Defendants now move for summary judgment on the complaint pursuant to Code of Civil Procedure section 473(c) on the grounds that Plaintiff’s claims fail as a matter of law because the undisputed physical evidence establishes the absence of any dangerous condition, that the curb on which Plaintiff tripped complied with all applicable code requirements and does not present an unreasonable risk of harm, and that there is no evidence that Defendants breached any duty of care to Plaintiff.

Plaintiff opposes the motion.

I. Evidentiary Objections

Plaintiff filed objections to Defendants’ evidence in support of the motion.

Declaration of Soyoun K. McConnell

The Court sustains objection no. 1 as only the interrogatory responses are provided, not the interrogatories themselves.

¹ The complaint also alleged a cause of action for dangerous condition of public property against the County of San Luis Obispo. The County was dismissed on July 11, 2025.

² Spyglass Inn, LLC and Pacific Hotel Company shall collectively be referred to as Defendants herein.

The Court overrules objection nos. 2-4 as the exhibits are not vague, ambiguous or unintelligible, and are sufficiently authenticated.

To the extent that Plaintiff objects to the evidence in her separate statement, those objections do not comply with California Rules of Court, rule 3.1354.

Declaration of Mark Van Wonterghem

The Court overrules objection no. 1; the Court does not find the declaration to be vague, ambiguous or uncertain.

II. Legal Standard

A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (Code Civ. Proc., § 437c, subd. (a)(1).)

Defendants, as the moving parties, have the initial burden to make a prima facie showing that there are no triable issues of material fact and that they are entitled to adjudication as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) In particular, Defendants bear “the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto.” (*Id.*, at p. 850, citing Code Civ. Proc., § 437c, subd. (p)(2).) Defendants can satisfy their burden by presenting evidence that conclusively negates an element of Plaintiff’s claim, or by showing through evidence that Plaintiff does not possess, and cannot reasonably obtain, needed evidence. (*Id.*, at p. 854-855.) If Defendants make a prima facie showing, then the burden shifts to Plaintiff to produce admissible evidence showing a triable issue of material fact exists. (*Id.*, at p. 850; Code Civ. Proc., § 437c, subd. (p)(2).)

The Court’s sole function on a motion for summary judgment is issue-finding, not issue-determination; the Court must simply determine from the evidence submitted whether there is a “triable issue as to any material fact.” (Code Civ. Proc., § 437c, subd. (c); Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 10:270.)

The pleadings define and limit the issues to be considered on a motion for summary judgment. (*Lowe v. Cal. League of Prof. Baseball* (1997) 56 Cal.App.4th 112, 122; see also *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1253.)

III. Discussion

The Court initially notes that Plaintiff’s negligence cause of action is duplicative of her premises liability cause of action. Both causes of action rely on the same theory of liability (negligence) and the same facts (Plaintiff tripped and fell on Defendants’ property due to an alleged dangerous “elevation change.”).

The elements for both negligence and premises liability are duty, breach, causation, and damages. (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998; *Luebke v. Automobile*

Club of Southern California (2020) 59 Cal.App.5th 694, 703.) Under California Civil Code section 1714(a), a property owner is generally responsible for injuries caused by a failure to exercise ordinary care in the management of property.

Therefore, to recover damages for either negligence or premises liability, Plaintiff must prove Defendants breached a legal duty to either repair or warn about the existence of a dangerous condition—the “elevation change”—that allegedly caused her to trip and fall. (*Miller v. Pacific Gas & Electric Co.* (2023) 97 Cal.App.5th 1161, 1166 (*Miller*).)

“[I]f a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition.” (*Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387, 393.)

Moreover, a property owner does not have a duty to make a trivial defect in property safe or give an adequate warning of such a trivial defect. (*Cadam v. Somerset Gardens Townhouse HOA* (2011) 200 Cal.App.4th 383, 388.) A court looks at the totality of the circumstances surrounding the accident in determining whether the condition is dangerous or trivial. (*Caloroso v. Hathaway* (2004) 122 Cal.App.4th 922, 927 (*Caloroso*).) In the context of sidewalk defect cases, landowners do not have a duty to protect pedestrians from every sidewalk defect that might pose a tripping hazard—only those defects that create a substantial risk of injury to a pedestrian using reasonable care. (*Miller, supra*, 97 Cal.App.5th at p. 1166.)

Whether a particular sidewalk defect is trivial and nonactionable may be resolved as a matter of law where the size and nature of the defect supports a finding of a trivial defect based on its physical characteristics, and where the evidence of additional factors does not indicate the defect was sufficiently dangerous to a reasonably careful person. (*Miller, supra*, 97 Cal.App.5th at p. 1167; see also *Caloroso, supra*, 122 Cal.App.4th at p. 929 [“Where reasonable minds can reach only one conclusion—that there was no substantial risk of injury—the issue is a question of law, properly resolved by way of summary judgment.”])

Defendants’ undisputed facts show that Plaintiff was injured on September 28, 2024, at approximately 5:15 p.m, walking to her Spyglass Inn hotel room from the hotel parking lot. (UMF 2.) Plaintiff alleges that the Spyglass Inn parking lot in question was in a dangerous condition at the time of Plaintiff’s incident because it contained a dangerous condition, due to a change in elevation in the parking lot that was not apparent, conspicuous or highlighted and that posted a dangerous tripping hazard for foreseeable users of the sidewalk. (UMF 6; Compl.) The parties do not appear to dispute that the fall occurred during daylight hours.

The photographs submitted by the parties of the location of Plaintiff’s fall shows that she tripped over the curb at the edge of the parking lot; the sidewalk surface above the curve is flat. (Defendants’ Exs. D, E, G; Declaration of Plaintiff’s Expert, Zachary Moore (Moore Decl.), ¶ 8, 11, 12, 13; Ex. B to Moore Decl.) The curb and sidewalk are a light gray concrete and the paved area of the parking lot is darker asphalt. (*Ibid.*) A section of the curb is painted yellow a few feet down from where Plaintiff tripped. (*Ibid.*) The top of the curb is 6.5 inches above the surface of the parking lot. (Declaration of Mark Van Wonterghem (Van Wonterghem Decl., ¶ 10; Ex. 6; Moore Decl., ¶ 12 [declaring a 6-inch elevation, but photo shows approximately 6.5 inches].)

Defendants' expert declares that the sidewalk and surrounding area are within the applicable city code. (Van Wonterghem Decl., ¶ 15.)

Plaintiff does not allege or identify any dangerous condition other than the "elevation change" of the curb, which she alleges was not apparent, conspicuous or highlighted. (Cmpl., ¶ 9.) No cracks, wet slicks, or other similar defects are alleged. The curb is not alleged or shown to be of unusual height. The curb is a lighter shade of gray than the surface of the parking lot.

The Court finds the elevation change between the parking lot and the curb/sidewalk and surrounding areas to be obvious and trivial. There is no evidence showing that the curb and sidewalk are anything other than ordinary. Individuals encounter curbs on a daily basis; an elevation change at the end of a parking lot is to be expected. The lighting, which involved a combination of sunlight and shade, is common and does not increase the risk. Based upon the evidence presented and the totality of the circumstances, no reasonable mind could conclude that the subject sidewalk and curb, which is within the normal height of curbs in California, presents a dangerous condition.

Plaintiff fails to raise a triable issue of material fact as to whether the curb and sidewalk area was dangerous; the condition of the curb and sidewalk area is thoroughly document in photographs which the Court has reviewed. The Court does not find persuasive the contentions of Plaintiff's expert, Mr. Moore, that the entire curb must be painted with yellow exciter paint or that the lack of yellow paint in this particular spot rendered the curb area dangerous. (See *Caloroso, supra*, 122 Cal.App.4th 922, 928 [trial court did not abuse its discretion in finding that no expert was needed to decide whether the size or irregular shape of the crack rendered it dangerous.])

Moreover, Plaintiff's arguments that liability should be found based upon lack of regular inspection are unavailing. This is not a case where there was a hazard beyond the general nature of the curb to be "discovered".³

ORDER (PROPOSED)

Defendants' motion for summary judgment is granted. Defendants shall give notice of this order.

³ Plaintiff's argument that the motion must be denied if a single material fact is disputed is not availing here, as the Court finds there to be no true dispute as to Defendants' facts. The evidence supporting Defendants' facts is sufficiently identified; while line and page numbers are necessary for dense exhibits, the specific portions of the evidence relied on are not difficult to locate here. Moreover, Plaintiff's own evidence establishes that Defendants' facts are not truly in dispute.